

26TRCV00846 26TRCV00846

County: los-angeles

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Case Number: 26TRCV00846 Hearing Date: August 13, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

SIWEI WANG

;

Plaintiff,

vs.

JONG KIM

;

Defendant.

Case

No.:

26TRCV00846

Hearing

Date:

August
13, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

JONG KIM'S MOTION TO ENFORCE SETTLEMENT

MOVING PARTY: Defendant, Jong Kim

RESPONDING

PARTY: Plaintiff, Siwei Wang

(1)

Defendant

Jong Kim's Motion to Enforce Settlement is DENIED pursuant to Code of Civil
Procedure section 664.6, subdivision (a).

The Court considers the moving
papers filed on April 30, 2026, the opposition brief on July 2, 2026, and the
reply brief on July 14, 2026.

BACKGROUND

Factual Background

On January 19, 2026, plaintiff

Siwei Wang ("Plaintiff") made a Time-Limited Demand Pursuant to CCP § 999.1

("Demand") to the insurance carrier of defendant Jong Kim ("Defendant"). (Declaration of Kaylan Bland-Fetters
("Bland-Fetters

Decl."), ¶ 2; Notice of Lodgment ("NoL"), Exh. A.) This Demand specified an expiration date of "Thursday,
February 20, 2026 at 12:00 p.m. PST." (Bland-Fetters

Decl., ¶ 2; NoL, Exh. A.) On the final

page of the Demand, Plaintiff's counsel stated, "Time is of the essence for the acceptance of this demand. Acceptance requires that you fully comply with the demand and that you specifically perform each and every condition set forth herein, before the offer expires. This means that we must receive all of the requested documentation, including the declarations, release, and the settlement check(s) at our office ... before the offer expires on February 20, 2026 at 12:00 p.m." (Bland-Fetters Decl., ¶¶ 3-4; NoL, Exh. A.)

On February 18, 2026, at 9:41 a.m., Defendant's counsel left a voicemail for Plaintiff's counsel to inform them that Defendant's insurance carrier had accepted Plaintiff's demand for the policy limits. (Bland-Fetters Decl., ¶ 5; NoL, Exh. B.) Subsequently, at 9:57 a.m. on the same day, Defendant's counsel reiterated this information in a follow-up email. (Bland-Fetters Decl., ¶ 7; NoL, Exh. B.)

At 10:19 a.m. on February 18, 2026, Plaintiff's counsel responded, asserting, "This is not acceptance. You must perform each condition before the expiration of the demand. " (Bland-Fetters Decl., ¶ 8; NoL, Exh. C.) Following this, from February 19 to 20, 2026, the counsels for both parties exchanged several communications, during which Plaintiff's counsel continually maintained that "performance must confirm to [the] terms" of the Demand for there to be an acceptance. (Bland-Fetters Decl., ¶¶ 11, 13-14, 16-27, 29-37; NoL, Exhs. E-V.)

On February 20, 2026, at 12:06 p.m., Defendant's counsel sent an email confirming that payment had been processed and dispatched, additionally attaching relevant affidavits, the policy declaration, and the proposed draft settlement. (Bland-Fetters Decl., ¶ 38; NoL, Exh. W.)

On February 21, 2026, Plaintiff's counsel sent a letter to Defendant's insurance carrier, asserting that the Demand had expired and stating that the carrier had failed to accept the settlement offer. (Bland-Fetters Decl., ¶ 39; NoL, Exh. X.)

On March 5, 2026, Plaintiff filed

the Complaint against Defendant and DOES 1 through 100. The Complaint includes one cause of action for (1) Negligence.

LEGAL STANDARDS

Pursuant to the Code of Civil Procedure section 664.6: "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).) "Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 809 (Weddington).)

"Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment [citations], nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon." (Weddington, supra, 60 Cal.App.4th at p. 810, internal citations omitted and emphasis in original.)

Moreover, "the Supreme Court made clear that an agreement to settle cannot be enforced under Code of Civil Procedure section 664.6 unless it is signed by all of the litigating parties." (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 985, citing Levy v. Superior Court (1995) 10 Cal.4th 578, 586.) "Because of its summary nature, strict compliance with the requirements of section 664.6 is prerequisite to invoking the power of the court to impose a settlement agreement." (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.) Thus, to enforce a written settlement agreement under Code Civ. Proc., section 664.6, the following three elements must be met: (1) the parties must have come to a meeting of the minds on all material points; (2) there must be a writing that contains the material terms of the agreement; and (3) the writing must be signed by the parties. (Weddington, supra, 60

DISCUSSION

Defendant

requests that the Court issue an order declaring that the parties reached a valid and binding settlement under Code of Civil Procedure section 999. (Motion, p. 3:18-19.) This request is made pursuant to Code of

Civil Procedure section 664.6 and the Court's inherent authority. (Motion, p. 3:17-18.) This request is DENIED. Neither Code of Civil

Procedure section 664.6 nor the Court's inherent authority permits the enforcement of a pre-litigation settlement.

First, the Court notes that Defendant fails to articulate how the inherent authority of the Court allows for the enforcement of the alleged settlement. Consequently, the Court finds this argument to be without merit.

Moreover, Code of Civil Procedure section 664.6 expressly permits the Court to enter judgment "[i]f the parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case[.]" (Code Civ. Proc., § 664.6, subd. (a), emphasis added.) Defendant concedes that "[s]ection 664.6 applies only to settlements reached during pending litigation and is therefore inapplicable here since the parties agreed to a settlement before any litigation began." (Reply, p. 2:21-22.) As a result, the Court is unable to enforce the alleged settlement under Code of Civil Procedure section 664.6, the statute upon which Defendant relies for the enforcement.

In response, Defendant

additionally asserts that "[s]ection 664.6 is not the exclusive means of enforcing settlements, which may also be enforced through breach of contract claims, like the one here." (Reply, p. 3:23-24.) However, no party has brought a claim for breach of contract, rendering this argument both incorrect and irrelevant.

Furthermore, Defendant claims,

"Plaintiff's argument does not support his position as Kim's moving papers makes it clear Section 999 is the basis for Kim's motion. Moreover, Plaintiff's Section 664.6 argument is not applicable." (Reply, p.

2:18-20.) The Court finds this argument to be incorrect and without merit. Defendant explicitly seeks to enforce the settlement under Code of Civil Procedure section 664.6, as discussed. Additionally, Code of Civil Procedure section 999 provides no legal basis for the Court to enforce an alleged pre-litigation settlement.

Accordingly, the Defendant's motion to enforce settlement is DENIED.

ORDERS

1) Defendant
Jong Kim's Motion to Enforce Settlement is DENIED.

2) Defendant
is ordered to give notice of this Court's order.

IT IS SO ORDERED.

DATED: August 13, 2026

Tamara
Hall

Judge
of the Superior Court